

HOUSE No. 4105

The Commonwealth of Massachusetts

PRESENTED BY:

Natalie M. Blais, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to open space and aid to agriculture.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Barbara Kellogg</i>	<i>9 Stetson Road Hawley, MA 01339</i>	<i>2/5/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>7/22/2025</i>
<i>Meghan K. Kilcoyne</i>	<i>12th Worcester</i>	<i>8/21/2025</i>

HOUSE No. 4105

By Representative Blais of Deerfield (by request), a petition (subject to Joint Rule 12) of Barbara Kellogg relative to the distribution of certain gaming revenue. Revenue.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to open space and aid to agriculture.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 55 of chapter 23K of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out, in subsection (c), the phrase “9 per cent”
3 and replacing it with the following: “.5 per cent”.

4 SECTION 2. Section 55 of said chapter 23K of the General Laws, as so appearing, is
5 hereby further amended by adding, at the end of subsection (c), after the phrase “section 60”, the
6 following: “and 8.5 percent of its daily gross gaming revenue to the Healthy Incentives Program
7 under the Department of Transitional Assistance.”

8 SECTION 3. Section 59 of chapter 23K of the General Laws, as appearing in the 2022
9 Official Edition, is hereby amended by striking out, in subsection (2)(1), the phrase “2.5 per cent”
10 and replacing it with the following: “.2 per cent”.

SECTION 4. Section 59 of said chapter 23K of the General Laws, as so appearing, is hereby further amended by adding at the end a new subsection: “(2)(m) 2.3 per cent to the Healthy Incentives Program under the Department of Transitional Assistance.”

SECTION 5. Of the funds currently in any of the accounts of the Race Horse Development Fund, as described in section 60 of chapter 23K, \$10 million shall be transferred immediately to the Healthy Incentives Program under the Department of Transitional Assistance (“HIP”). The remainder of such funds shall be immediately transferred to the Community Preservation Trust Fund established in section 9 of chapter 44B of the General Laws.

SECTION 6. Notwithstanding section 60 of chapter 23K, after such transfers as provided above in SECTION 5, any further funds paid into the Race Horse Development Fund, as provided in sections 2 and 4 above, shall be used exclusively for health and pension benefits of all currently retired or permanently disabled former jockeys, former drivers, and former Suffolk Downs “backstretch” workers (grooms and other barn workers). The Massachusetts Gaming Commission shall use the same general standards it currently uses to determine eligibility for disabled or retired jockeys to determine eligibility of retired or disabled former Suffolk Downs Backstretch Workers for health and welfare benefits.

SECTION 7. This act shall take effect upon its passage.